

DILLA UNIVERSITY

SCHOOL OF LAW

THE CONSTITUTIONALITY OF THE RIGHT TO FORM A TRADE UNION BY CIVIL SERVANTS AND ITS LIMITATIONS

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Statement of declaration

I hereby declare that this paper is my original work which have not submitted to any university in Ethiopia and take full responsibility for any failure to observe the conventional rules of citation. The works of others included in this paper are properly cited to my knowledge.

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ACRONYMS

Art. - Article.

ACHPR- African Charter on Human and Peoples Right.

CELU- The Confederation of Labor Unions.

ECHPR- European Convention on Human and Peoples Right.

FDRE- Federal Democratic Republic of Ethiopia.

ICCPR- International Covenant on Civil and political Rights.

ICESCR- International Covenant on Economic, Social and Cultural Rights.

ILC- International Labor Committee.

ILO- International Labor Organization.

No. - Number.

Proc. - Proclamation.

UDHR- Universal Declaration on Human Rights.

UN- United Nations.

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Abstract

Various international human rights instruments and ILO conventions to which Ethiopia has been a party guaranteed a trade union right to every person and Ethiopia as a member state of ILO and other international instruments is duty bound to make her legislations to be compatible with conventions and international instruments. The FDRE constitution also guarantees a trade union rights to all employees in general and government employees in particular. However, beside the existence of constitutional provision, it has perceived there is no a constitutional guarantee for civil servants to form a trade union and there is no law that guarantees such right since the labor proc. No. 377/2003 is not applicable and civil servants proc. No. 515/2007 is silent about the right to form an association. This research explores the constitutionality of the right to form a trade union by civil servants and its limits through effective analyzation of those various international human rights, ILO conventions and FDRE constitution. The researcher examines books, journals, two ILO conventions, international human rights instruments, FDRE constitution, prior labor legislation of the country, the labor proclamation No.377/2003. The FDRE constitution in a general form guaranteed the right to form a trade union by government employees, however, the subsequent laws prohibited and excluded them and which contravene the international instruments, ILO conventions and FDRE constitution. This is because the laws lack detail in allowing civil servants in exercising the right to form association including a trade union. The paper concludes that based on those above mentioned instruments; there is a constitutional base to form a trade union by civil servants. The instruments under discussion also impose limitation on the enjoyment of the right for various reasons by some categories of workers. The researcher recommends for a making of a law that clearly provides solution for the subject matter of the study and he additionally recommends for the revision and/ or an inclusion of a new provision to the existing proclamations that entitles civil servants right to form a trade union that may able to solve the limitations of them

CHAPTER ONE

1.1 Back ground of the study

A trade union was a combination of persons, whether temporary or permanent, primarily for the purpose of regulating the relations between workers and employers and or between workers for imposing restrictive conditions of the conduct of any work¹. A trade union is also an association of workers, acting collectively, who see to protect and promote their mutual interests through collective bargaining. The right to unionize was enshrined in the earliest United Nations (UN) agreements and was reaffirmed in many subsequent international human rights conventions. The Universal Declaration of Human Rights (UDHR²) which was adopted in 1948 and all 193 UN member states have agreed to states that “everyone has the right to form and join trade unions for the protection of his interests”³. The International Covenant on Economic, Social and Cultural Rights (ICESCR⁴) adopted in 1966 and ratified by 160 countries imposed formal obligation on state parties to undertake to ensure “the right of everyone to form trade unions and join the trade union of his choice”. No restriction may be placed on the exercise of this right other than those prescribed by law and which are necessary in democratic society in the interests of national security or public order or for the protection of the rights and freedoms of others.⁵

Furthermore, International Covenant on Civil, and Political Rights (ICCPR)⁶ by itself also recognized the right to trade union and imposed obligation on state parties to guarantee to everyone the right to freedom of association with others, including the right to form and join trade unions for the protection of his/her interest. It also imposed a certain restrictions on this right.⁷ In addition to

¹ .<https://en.m.wikipedia.org/wiki/Freedom-of-association>, last accessed on 20 January 2016.

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² United Nations General Assembly Resolution 217 A (III) of 10 December 1948.

³ . Article 23(4) Universal declaration of Human Rights, 1948.

⁴ . United Nations General Assembly Resolution 2200 A (XXI) of 16 December 1966, in force 3 January 1976.

⁵ . Article 8(1) (b), International Covenant on Economic, Social Cultural Rights, 1966.

⁶ . United Nations General Assembly Resolution 2200 A (XXI) of 16 December 1966, in force 23 March 1976.

⁷ . International Covenant on Civil and Political Rights, Article 22(1) and sub (-2).

international human rights instruments, some regional human rights instruments also guaranteed to individuals the right to form and join trade union. For instance, European Convention on Human Rights (ECHR) guaranteed to everyone the right to freedom of peaceful assembly and to freedom of association with others, including the right to form and join trade unions for the protection of his interests.⁸ African Charter on Human and Peoples' Right (ACHPR) reinforced the same right impliedly. It states "every individual shall have the right to free association provided that he abides by the law".⁹ Of course, unique from other above mentioned instruments, it have not expressly provides for about trade union rights, rather it guarantees the right to free association. However, it would be possible to say that the right to association includes the right to form and join trade union.

Meanwhile, there were times in labor history that formation of association of employees was considered as conspiracy and hence criminal offence.¹⁰ Through passage of time and ever since the establishment of International Labor Organization (ILO) as a world body, however, the right to form association has been one of the fundamental rights for both employers and employees.¹¹ As an expression of importance attached to this issue various ILO instruments including the ILO constitution have expressly stated it. ILO convention NO.98 obliges state parties to ILO to undertake to give effect workers and employers, without distinction to whatsoever, shall have the right to establish and, subject to the rules of organization concerned to join organizations of their own choosing without previous authorization.¹² Of course a certain categories of workers/employees were excluded from enjoying such right.

The right to unionize can play a critical role in ensuring that individuals are protected from discrimination, harassment, and exploitation at work. Constitutional guarantees of the right to unionize are fundamental to ensuring, that labor legislation would be enforced and that workers are able to negotiate for better wages, working conditions, and benefits.¹³ Constitutional guarantees of the right to associate or unionize can be used to protect vulnerable workers from changes in governments and expand the rule of unions

⁸ . Article 11(1), European Convention for the Protection of Human Rights and Fundamental Freedoms, Rome, 4. XI, 1950.

⁹ . Article 10(1), African (Banjul) Charter on Human and Peoples Right, Adopted 17 June 1981, in force 21 October 1986.

¹⁰ . www.academia.edu/10675994/TRADE-UNION-RIGHTS-OF-GOVERNMENT-EMPLOYEES-IN-ETHIOPIA-LONG-OVER-DUE-last accessed on 7 January 2017.

¹¹ . Mahari Redae, Teaching Material on Employment and Labor Law, 2009 (unpublished) p.115.

¹² . Freedom of Association and Protection of Right to Organize Convention, ILO Convention No. 87 (1948), Art. 2.

¹³ Fairris D. (2006) union voice effect in Mexico, British journal of Industrial Relations. 44(1), PP. 781-800.

for protecting worker's right and interest. Countries all over the world follow various approaches towards the implementation of trade union rights. Some countries recognize trade union rights to only for those workers in the private sector and deny these rights for public sector employees. Other countries follow a procedure whereby a limited categories of workers are entitled to a trade union rights provided in the labor law.¹⁴ When we see the implementation under Ethiopian law, the Federal Democratic Republic of Ethiopia Constitution (hereinafter FDRE constitution) guarantees such right¹⁵ but its implementation has been seen under this study.

In spite of the claim to universality and inalienability, human rights are not exercised in an absolute manner.¹⁶ There was a limitation imposed on the exercise of rights for the sake of making an optimal "utilization" or enjoyment of rights. Right to form a trade union was not an exception to this fact, i.e. limitations on the enjoyment of such rights can be imposed for various policy reasons without contravening the law. Restriction might be imposed through specifically determining the beneficiaries and excluding some from exercising such rights. Even for those to whom the right was guaranteed, imposition would be laid down in regarding its content and scope. To this end, the right to form a trade union was not without limit. Therefore, as the aforementioned comparative human rights instruments analysis indicated, the right to form a trade union has been fully recognized under international, regional and domestic laws. Further, those instruments also expressed that limitation/restrictions would be imposed for one or another reason. To this end studying the nature and scope of the right to form a trade union in general and by civil servants in particular under Ethiopian jurisprudence has a paramount importance.

1.2 statement of the problem

When I took a course on employment and labor law in the fourth year, second semester, workers under the federal labor proclamation No. 377/2003,¹⁷ were allowed the right to form and establish a trade union. When I understood this fact and compared/seen it under

¹⁴ . See supra footnote 10.

¹⁵ . Article 42(1) (a), Federal Democratic Republic of Ethiopia Constitution, Ratified 8 December 1994, in force 21 August 1995.

¹⁶ . Tsegaye Regassa, Mizan Law Review, Vol.3, No.2, September 2009 Making Legal Sense of Human Rights: The Judicial Role in Protecting Human Rights in Ethiopia.

¹⁷ Labor Proclamation No. 377/2003, Federal Negarit Gazeta of Federal Republic of Ethiopia, 10th Year, No. 12, Addis Ababa Ethiopia, February 26, 2003.

federal civil servants proclamation No. 515/2007,¹⁸ I found in nowhere of the proclamation that civil servants were allowed to form and join a trade despite its constitutional guarantee. This has inspired me to do this research. As it was known, trade union right was one of the fundamental democratic rights and freedoms and should be implemented by government.

Historically in Ethiopia, there was no gainsaying that human rights are generally recognized in the contemporary constitutional system of Ethiopia. In this, the FDRE constitution of the 1995 marked a departure from the past. The FDRE constitution was a compact document with an admirable degree of clarity and conciseness. It has 106 articles arranged in 11 chapters. In its chapter three¹⁹, it offers a long list of rights that were divided into two categories, namely that of 'Human Rights and 'Democratic Rights.²⁰ Trade union rights were among those fundamental democratic rights and freedoms entrenched in the bill of rights section (chapter three) of the FDRE constitution of 1995. Apart from the constitution various international and regional human rights instruments ratified by Ethiopia has guaranteed trade union right.

In Ethiopia, as stated under the back ground of the research, civil servants whose work compatibility allows for it and who are below a certain level of responsibility are entitled to trade union rights.²¹ Further, the constitution stipulates that categories of such government employees should be determined by the further legislation.²² The constitution promised a law should be made for this purpose. Nevertheless, such a law has not yet to come. It has been above two decades since the adoption of the constitution and such law has not yet materialized, which left the constitutional provision ineffective in the implementation of this very fundamental democratic right. This lack of legislation has contributed significantly a deep rooted misunderstanding that government employees were not entitled to trade union rights despite the fact that it was a constitutionally guaranteed fundamental right.

Hence, the research paper has endeavored to bring light to the issue by providing a critically analyzed and substantiated for the source of the right to form a trade union by civil servants both at international and national level, specially the scope of the right under FDRE

¹⁸ . Civil Servants Proclamation No. 515/2007, Federal Negarit Gazeta of the Federal Republic of Ethiopia, 13th Year No. 15, Addis Ababa, February 19, 2007.

¹⁹ . This chapter three of the FDRE constitution can qualify for being the Ethiopian bill of rights, Art. 13-44.

²⁰ . Arts. 14-28 were devoted to 'Human Rights while Arts. 29-44 were devoted to 'Democratic Rights.

²¹ See supra footnote 15.

²² . Ibid sub (c).

constitution so as to bring into sight what the real scope and nature and its limits. Furthermore, it tried to seek to show gaps in the protection and to enhance awareness on the scope and content of trade union rights in general and the scope of entitlement of this right to government employees in particular. Finally, the researcher has explored and disclosed clearly the constitutional base, the scope and limitations accorded on the right to form a trade union by civil servants under FDRE constitution.

1.3 Objectives of the study

1.3.1 General objectives

The general objective of this study is to explore out the constitutional base to form a trade union by civil servants and to show the scope of this right in the light of international and regional human rights instruments and FDRE constitution.

1.3.2 Specific objectives

- To find out the category of civil servants that are allowed to form a trade union;
- It will also show some civil servants who are excluded from forming a trade union;
- It will disclose the limitations to form a trade union and its rationales;
- It will point out the way to uphold this fundamental right through indicating possible steps that will be taken by concerning authorities;
- It will also show other fundamental rights and interests that will be exercised through forming a trade union and its significance.

1.4 Significance of the study

The research have intended to have the following significances, which are;-

- It will enable readers and academia to have better understanding on the constitutional basis of the right to form a trade union by civil servants;
- It will encourage civil servants whose work compatibility allows to a trade union right to understand and enjoy the right;

- It will help readers and researchers to know the real nature and the limits of the right to form a trade union by civil servants under Ethiopian legal regime and will enable the same to analyze further the scope of the right.

1.5 Research questions

- Does have a constitutional base to form a trade union by civil servants?
- What are the limits of the right to form a trade union by civil servants?

1.6 Limitation of the study

The research has aimed to explore the clear constitutional base to form a trade union by civil servants in Ethiopian legal system. It also furthers the limits of such right. This has been a source demanding task, thus, it is difficult to obtain all the sources and reference materials and literatures on the topic which remains a big problem to the study.

1.7 Scope of the study

The scope of the study has limited to the analysis of international and regional human rights instruments, ILO conventions adopted by Ethiopia, FDRE constitution and other laws which are relevant to the study. Also some countries jurisprudence has reviewed when such was found necessary for the subject matter of the study and as an experience.

1.8 The research methodology

The research has based on relevant law analysis and is a desk top/conventional research. In order to achieve its objectives, this research has put emphasis on secondary data sources in collecting relevant data. Accordingly, it has relied on analyzing international and regional human rights instruments, books, journals, academic articles and FDRE constitution and other domestic laws that have particular importance to the study.

In addition to these, the jurisprudence of other countries has also reviewed when such has found necessary to the subject matter of the study. Internet has also accessed for relevant information.

1.9 Organization of the study

The research is conducted in a manner any given standard research should follow. The research consists of four chapters. Chapter one introduces the general back ground of the study, statement of the problem, objectives of the study, research questions, limitation of the study, scope of the study, the research methodology and organization of the study. Chapter two deals with the right to form a trade union, its concept and definition, historical back-ground, theoretical foundation, guarantee under different laws, countries way of implementing and limitations to it. Chapter three covers the status of a trade union right under Ethiopian labor law and constitutional provisions including its history Ethiopia, guarantee, limitation and the researchers reflection on the subject matter (analysis). The last chapter deals with conclusion and recommendations forwarded by the researcher basically and solely based on the outcomes of the study.

CHAPTER 2

The Right to form a Trade Union and Its Limitations

2.1 Definitions and the meaning of a trade union

The primary task of every activity would to define its subject matter. To this end, the paper tried to define its main subject matter. In the legal world and in any other fields there would be no a clear cut definition for a given word. Different academia's and scholars define a given word in a different way. Accordingly the concept of a trade union was defined in multiple ways. One of the most used law dictionary Black's law dictionary defined a trade union as an organization formed to negotiate with employers, on behalf of workers collectively about job-related issues such as salary, benefits, working hours and working conditions.²³ Also a trade union was an organization of workers who have come together to achieve common goods such as protecting the integrity of its trade, improving safety standards, achieving higher pay and benefits such as health care and retirement, increasing the number of employees an employer assigns to complete the work, and better working conditions.²⁴

The right to form a trade union was a type of freedom of association and it was the right of individuals to join a group of person's with once own choosing, and for the group to take collective action of pursue the interest of its members. It was one of the essential democratic rights that involves coming together with other individuals and collectively express, promote, pursue and defend common interests. It was both an individual as well as a collective right, guaranteed by all modern and democratic legal systems including the United States Bill of Rights, article 11 of European convention on human rights and international laws, including article 20 and 23 of Universal Declaration of Haman Rights and convention No. 87 and 98 of ILOs.²⁵

²³ . Black's Law Dictionary (2004), Ninth edition, Bryan A. Garner P1671.

²⁴ . <https://en.m.wikipedia.org/wiki/Freedom-of-Association>,last accessed in 20 January 2017.

²⁵ . Ibid.

2.2 Historical-background of the right to form a trade union

The origin of trade unions can be traced back to 18th century Britain, where the rapid expansion of industrial society then taking place, drew women, children, rural workers and immigrants into the work force in large numbers and in new roles. This pool of unskilled and semi-skilled labor spontaneously organized in fits and started throughout its beginnings, and would later be an important arena for the development of trade unions.²⁶ Furthermore, the history of trade unions all over the world was a history of struggle for greater social justice, both in societies and at the work place. In most cases, an individual worker were economically weak and possessed low bargaining power, they were exposed to exploitation and their lives and working conditions become so poor over time.²⁷ Trade union was a solution to such conditions which forced workers to protect themselves from exploitations such as low pay, very long working hours and generally unfavorable working conditions. Even the existence of such situation was one of the justifications for the intervention of government in the private labor issues through setting minimum standards like ours.

At national level, the formal history of a trade union in Ethiopia dates back to the year 1963 when the monarchical rule of Haileselassie adopted the labor relations decree of 210/1963.²⁸ Though the 1955 constitution guaranteed the right to form workers association, it was only after the labor relation decree come into force that the federation of the employers of Ethiopia in 1963, and the confederation of Ethiopian labor unions (CELU) in 1964 come into picture. The history before that was marked by the suppression of any movement close to unionism as a criminal.²⁹ This forced workers to undertake similar actions in to hiding and holding their meetings under the guise of social gathering in the compound of churches.³⁰ Now the right to form a trade union has gained wider recognition over the last to decades since the establishment of the United Nations and International Labor Organization. Today it was

²⁶ . Webb, Sidney; Webb, Beatrice (1920) History of trade unionism, Long mans and co. London, ch.1, PP 156.

²⁷ . See supra footnote 10.

²⁸ . Proclamation No. 210/1963, labor Relation Proclamation, Negarit gazeta, 23rd Year, No. 3, 1963.

²⁹ . See supra footnote 10.

³⁰ . Ibid.

recognized in international and regional human rights instruments including domestic legislations and constitutions. To this end, thorough discussions have made in the coming sub-topic both its recognition at internationally and nationally.

2.3 The theoretical foundation of the right to form a trade union

Respect for the freedom of association by all public authorities and exercising of this freedom by all sections of societies were essential both to establish a “genuine democracy” and to ensure that once achieved, it remains “healthy and flourishing.” In this regard forming a trade union was a significant manifestation of the freedom association.³¹ From the libertarian point of view, freedom of association was used to describe the concept of absolute freedom to live in community or be part of an organizations whose values or culture were closely related to one’s preferences; or, on a more basic level, to associate with any individual or group of one’s choosing. According to their view, freedom of association was a manifestation of person’s voluntary deciding with whom to associate based on volition. Libertarians also hold strong opinion on labor union and some supported the workers right to choose in an election whether to join a labor union or not. They also believe that while freedom of association includes the right for workers to organize once unions and to withdraw their labor and it also recognized the right of an employee/worker to replace that labor.³² They further believe that where unions undermine the free market or employ coercive or violent tactics such behaviors would be in breach of libertarians’ principles.³³ Allowing the right to form a trade union by all classes of society realizes the guarantee of equal protection for all without any discrimination based on any ground as one of a crucial principle of modern international law.³⁴ So, to this end, the right to form and join a trade union by a person’s internal volition should be guaranteed, protected and respected including by those under the public institutions subject to a certain restrictions and limitations prescribed by a law.

³¹ . Jeremy McBride (2005) Freedom of Association, The essentials of Human Rights, Hodder Arnold, London, PP.18.

³² Adam Smith, A free market in labor law; libertarians, employment and the unions. Available at <http://www.adamsmith.org/blog/regulation-industry/a-free-market-in-labor-libertarians-employment-and-the-unions/> last edited on 17 March 2017, at 17:10.

³³ . Ibid.

³⁴ . Ibid.

2.4 International standards on the right to form

a trade union

2.4.1 Protection of the right to form a trade union

2.4.1.1 Universal Declaration of Human Rights

Article 23(4) of the Universal Declaration of Human Rights (UDHR) guaranteed the right to form a trade union in the following manner;

“Everyone has the right to form and to join trade unions for the protection his interest.”

This provision guarantees to everyone without any distinction the right to form a trade union for his/her interest whatsoever. In here the phrase “everyone” may open the door to include civil servants as beneficiaries of the right under UDHR. However, the UDHR as a United Nations General Assembly Resolution was not a binding legal instrument on states as such. In spite of this fact, currently it was now a binding instrument mainly for two reasons; first, it becomes an authoritative/authentic interpretation of the UN charter of human rights provisions since most organs of the UN repeatedly relies on the provisions of the UDHR to define UN charter provisions. Second, it was a part of customary international human rights law because there were many international human right conferences³⁵ that relied on UDHR and it was also reflected in the national constitutions.³⁶

³⁵ . For instance ICCPR and ICESCR expressly incorporated and recognized UDHR in their respective preambles in similar manner and words.

³⁶For example Art. 13(2) of FDRE o claims for interpretation purpose to the conformity of the interpretation of the chapter three of the constitution to UDHR principles.

2.4.1.2 International Covenant on Civil and Political Rights

The international covenant on civil and political rights (ICCPR) which almost all nations ratified except to few nations was another corner stone of the right to form a trade union. Article 22 of ICCPR guaranteed the right in the following terms;

- (1) *Everyone shall have the right to freedom of association with others, including the right to form and join a trade union for the protection of his interests.*³⁷
- (2) *No restrictions may be placed on the exercise of this right other than those which are prescribed by law and which are necessary in a democratic society in the interest of national security or public safety, public order (order public), the protection of public health or morals or the protection of the rights and freedoms of others. This article shall not prevent the imposition of lawful restrictions on the members of the armed force and police force in their exercise of this right.*³⁸
- (3) *Nothing in this article shall authorize state parties to the ILOs convention of 1948 concerning freedom of association and protection of the right to organize to legislative measures which prejudice, or to apply the law in such manner as to prejudice, the guarantees provided for in that convention*³⁹.

Trade unions have specific protection under article 22(1) of the ICCPR while article 22(3) emphasizes the preexisting obligations under ILO convention No.87. The personal/subject matter jurisdiction was unlimited since the article begun with the phrase “everyone” that can be interpreted as including civil servants. Accordingly, the denial to civil servants the right to form a trade union may amount to violation of article 22 of the ICCPR.

2.4.1.3 International Covenant on Economic, Social and Cultural Rights

³⁷ . See supra footnote 7 sub (-1).

³⁸ . Ibid sub (-2).

³⁹ . Ibid sub (-3).

Article 8 of International Covenant on Economic, Social and Cultural Rights (ICESCR) provides the right to form a trade union though subject to a certain restrictions, that were subject only to the rules of the organization concerned and those prescribed by law which were necessary in a democratic society or public order or for the protection of the rights and freedoms of others,⁴⁰ declares;

- (1) *The state parties to the present covenant undertake to ensure;*
 - (a) *The right of everyone to form a trade unions and join the trade union of his choice for the promotion and protection of his economic and social interests;*
 - (b) *The right of a trade unions to establish national federations or confederation and the right of the later to form or join international trade union organizations, inter alia.*

Moreover, the right of trade unions to function freely without any limitation other than those prescribed by law and in the interest of national security or public order for the protection of the rights and freedoms of others was stipulated.⁴¹

2.4.2 Fundamental conventions of International

Labor Organization

The ILO declaration on fundamental principles endorsed by the international community covers four main areas for the establishment of a collective ground in the world of work. Among them the two were important for this study includes;

- ❖ Freedom of association and protection of the right to organize convention, 1948(No.87) and

⁴⁰ . See supra footnote 5.

⁴¹ . Ibid.

❖ Right to organize and collective bargaining convention, 1949(No.98).⁴²

The principle of freedom of association was at the heart of the ILO's values. In 1919 the International Labor Committee enshrined it in the ILO constitution for the first time.

2.4.2.1 Freedom of association and protection of the right to organize convention, (C No.87).

ILO member states were obliged to give effect to the provisions provided under the freedom of association and protection of the right to organize convention (No.87).⁴³ Article 2 of the convention provides that, workers and employers, without distinction to whatsoever shall have the right to establish and, subject only to the rules of the organization concerned, to join organization of their own choosing without previous authorization.⁴⁴ It also prescribed under article 3 of the convention that, workers' and employers' organization shall have the right to draw up their respective constitutions and rules, to elect their representatives in full freedom, to organize the administration and activities and to formulate their programs. In addition to this, the public authorities are duty bound to refrain from any interference which would restrict this right or impede the lawful exercise thereof.⁴⁵

Article 4 of the convention states that workers' and employers' organizations shall not liable to be dissolved or suspended by administrative authority.⁴⁶ In exercising rights provided for in this convention workers and employers and their respective organizations, like other persons or organized collectives, shall respect the law of the land. But the law of the land shall not be such as

⁴² . International Labor Office. The International Labor Organizations Fundamental Conventions, 2nd edition, Author, Geneva (2003), p.8.

⁴³ . Art. 1. Freedom of Association and Protection of the Right to Organize Convention (No. 87) Adopted 9 July, entered into force 21 July 1950.

⁴⁴ . Ibid Art. 2.

⁴⁵ . Ibid Art. 3.

⁴⁶ . Ibid Art. 4.

to impair, nor shall it be so applied as to impair the guarantees provided for in this convention.⁴⁷ The only exception provided in the convention was the extent to which the guarantees provided for in this convention shall apply to the armed forces and the police. It states that it shall be determined by national laws or regulations. However, the ratification of this convention by any member state shall not be deemed to affect any existing law, award, custom or agreement in virtue of which members of the armed forces or the police enjoy any right guaranteed by the convention.⁴⁸

Each member of the ILO for which this convention was in force undertakes to take all necessary and appropriate measures to ensure that workers' and employers' may exercise freely the right to organize.⁴⁹ Generally, the convention on freedom of association and protection of the right to organize has not given the right only to workers it was designed to serve employers as well. That was to say both of them can enjoy the fruits of this right since it was given for all.

2.4.2.2 Right to organize and collective bargaining

convention, (C No.98).

Article 1 of the convention provides that workers will be protected against acts anti- union discrimination, including dismissal because of union membership or participation in union activities and free from requirements that a worker not to join a union or abandon union membership for employment.⁵⁰ On other hand, it was mentioned under article two of the convention that, workers' and employers' organizations shall enjoy adequate protection against any acts of interference by each other or each other's' agents or members in their establishment, functioning or administration.⁵¹ In particular, acts which are designed to promote the establishment of worker's organization under the domination of employers or employer's organizations, or to support worker's organizations by financial other

⁴⁷ . Ibid Art. 8.

⁴⁸ . Ibid Art. 9.

⁴⁹ . Ibid Art. 11.

⁵⁰ . Art. 1, Right to Organize and Collective Bargaining Convention (No. 98) adopted 1 July 1949, entered into force 18 July 1951.

⁵¹ . Ibid Art. 2.

means, with the object of placing such organizations under the control of employers or employer's organizations, shall be deemed to constitute acts of interference within the meaning of this article.⁵² Moreover, measures appropriate to national conditions shall be taken, where necessary to encourage and promote the full development and utilization of machinery for voluntary negotiation between employers or employer's organizations and workers organizations, with a view to the regulation of terms and conditions of employment by means of collective agreement.⁵³

One can safely conclude that, the two conventions freedom of association and protection of the right to organize and the right to organize and bargaining collectively where mutually not exclusive rather they can be realized together. In other words, the existence of the later was a prerequisite to the existence of the former. Therefore, the right of freedom of association and protection of the right can be realized if and only if it was supplemented by the right to organize and bargain collectively and both rights have meaning and effect if they were applied together.

2.4.3 European convention for the protection

human rights and fundamental freedoms

Art 11 of the convention provide that “everyone has the right to freedom of peaceful assembly to freedom of association with others, including the right to form to form and to join trade unions for the protection of his interests”.⁵⁴ This article safeguards the right to form a trade union and to join a trade union of one's choice, the right to be heard and freedom to protect the occupational interests, trade union members by a trade union action, the conduct and development of which the contracting states must both permit and make possible. In short one can conclude that like international human rights instruments discussed above, the European convention for the

⁵² . Ibid.

⁵³ . Ibid Art.3 and 4.

⁵⁴ . See supra foot note 8.

protection of human rights and fundamental freedom also guarantee the right for everyone to form and join a trade union with one's choice and volition and imposed obligation on member states to recognize and guarantee this right.

However, the European convention has recognized a possibility to put some "lawful" restriction for some civil servants. According to the last sentences of item 2 of article 11, it reads "this article shall prevent the imposition of lawful restriction on the exercise of these rights by members of the armed forces, of the police or of the administration of the state".⁵⁵

On the other hand the convention paved the way for restricting the armed forces, police and members of administration of the state only in three circumstances: the restriction should be made by law, they should be based on at least one of seven reasons limited in scope, and most important they should be necessary measures in a democratic society.⁵⁶ According to this provision, obviously a prohibition for trade unions for all civil servants can never be defended as lawful and a necessary measure in a democratic society.

2.4.4 African charter on human and people's right

Article 10(1) of the charter (African (Banjul) charter on human and peoples right) prescribes that "every individual shall have the right to free association provided that he abides by the law".⁵⁷ One thing that differentiates the African charter from the international and regional human rights instruments was that, it does not directly guarantee the right to form and join a trade union. But one can safely reach on idea that it also includes this right since it was one type of freedom of association rights.

2.5 Trade union right and countries experience

Countries all over the world follow various approaches towards the implementation of trade union rights. Some countries recognize trade union rights only for those workers in the private sector and deny these rights for public sector employees. For instance in

⁵⁵ . Ibid sub (-2).

⁵⁶ . Ibid.

⁵⁷ . See supra footnote 9.

Lesotho, civil servants are banned from forming a unions.⁵⁸ Other countries follow a procedure whereby limited categories of workers are entitled to trade union rights provided in labor law. There are also countries that recognize trade union rights for most sectors such as civil servants, teachers, journalists, medical personnel and even the police.⁵⁹ Countries with liberal legal framework may extend the recognition of trade union rights protection to workers in the informal sector including domestic workers.⁶⁰

2.5.1 Trade union rights in Ghana

The constitution of Ghana, 1992, came into force on 7 January 1993 and was amended on 16 December 1996. Its chapter 5 covers “fundamental human rights and freedoms of the individuals”. Section 12(2) states that “every person in Ghana, whatever their race, place of origin, political opinion, color, religion, creed or gender shall be entitled to the fundamental human rights and freedoms of the individual contained in this chapter but subject to respect to the rights and freedoms of others and for the public interest”.⁶¹ Section 21(1)(e) guarantees the right to form or join a trade union, its subsection (4) allows limitations by order of a court in the interest of the defense, public safety or public order, or movement or residence within Ghana as long as reasonably justifiable in terms of the spirit of the constitution.⁶²

Section 24 subsection (3) states, among other things, that “every worker has the right to form or join a trade union of his choice for the promotion and protection of his economic rights and social interests.”⁶³ Subsection (4) permits restrictions of reasonably necessary in the interest of national security or public order, or for the protection of the rights and freedoms of others.⁶⁴

⁵⁸ . State of Human rights situations in Africa. Africa Trade union movement perspectives/ 51st Ordinary session/ACHPR also available at <http://www.achpr.org/sessions/51stngo-statement/25/> accessed on 20 January 2017.

⁵⁹ . See supra footnote 10.

⁶⁰ . Section 12(2), constitution of Republic of Ghana, made 8th day of May 1992.

⁶¹ . Ibid.

⁶² . Ibid, Section 21(1) (e) and (4).

⁶³ . Ibid, section 24(3).

⁶⁴ . Ibid, sub- section (4).

In addition to the constitution, the labor act which covers all employers and employees except those in strategic positions such as the armed force, police service, prison service and the security intelligence agencies.⁶⁵ Section 79 to 95 of the labor act covers the formation, registration and free internal administration of these occupational organizations.⁶⁶ Two or more workers employed in the same undertaking may form a trade union, and two or more employers in the same industry or trade, each of whom employs not less than 15 workers, may form or join an employers' organization. Section 79(2) prohibits certain types of workers from the right to form a trade union (e.g. policy making managerial).⁶⁷

Based on the constitutional provisions, Ghana guarantees the right to form a trade union in both public and private sectors under some limitations. Some categories of workers in the public sector are excluded from the right to form or join a trade union by their choice such as police, workers in the customs, excise and preventive service and the fire services.⁶⁸ Purposely, teachers, registered nurses, civil servants and judicial services are entitled to form a trade association. Ghana also extended the recognition of trade union rights protection to workers in the informal sectors.⁶⁹

2.5.2 The freedom of association right in India

Article 19(1) (c) Of the constitution of India guarantees to all its citizens the right to form associations and unions.⁷⁰ Under clause (4) of article 19, the state may by law impose reasonable restrictions on this right in the interest of public order or morality or the

⁶⁵ . Nation Labor Law Profile: Ghana available at <http://www.ilo.org/ifpedial/information-resources/national-labour-law-profiles/WCMS-158898/lang-en/index.htm> accessed on 20 January 2017.

⁶⁶ . Section 79(1), the Labor Act No. 651 of Ghana 2003.

⁶⁷ . Ibid, sub-section (2).

⁶⁸ . Ghana: Decent work statistical indicators; Fact Finding Study, ILO, 2003.

⁶⁹ . See supra footnote 59.

⁷⁰ . Sovereign Socialist Secular Democratic Republic of India Constitution, 26th day Nov. 1949, Art.19 (1) (c).as amended 83 times.

sovereignty and integrity of India.⁷¹ The right to form an association or unions has very a wide and varied scope including all sorts of associations viz, political parties, clubs, societies, companies, organizations, entrepreneurships and trade unions, etc. the constitution guarantees the right to form and join a trade union by civil servants and the right to form association was not a fundamental and parliament can therefore, by law impose restriction on such right. India recognized the trade union right of civil servants in principle and subject to the particular restrictions on account of their level of responsibility (senior officials) or on nature of their functions (armed forces).

2.6 Limitations on the right to form a trade union

The right of association like other individual freedoms can be restricted. The restriction can be imposed on the exercise of rights for the sake of making an optimal utilization or enjoyment of rights.⁷² Limitations are lawful infringements of rights. They are acceptable or justifiable violations. They are deviations from the standard manner of dealing with rights imposed primarily to facilitate optimal use or exercise of rights in context of scarce public resources, space and time. Limitations can be taken various forms such as restriction, suspension, or derogation from. Each of these forms affects the exercise of rights in different ways and to a varying degree. The restrictions circumscribe the manner, or place, and the extent to which rights can be enjoyed and exercised in a particular set of circumstances, often in normal times. The right to form and join a trade union could not be an exception to the above truth. So, limitation can be imposed on the guarantee and enjoyment of this right. However, the limits cannot be imposed arbitrarily. Thus, it is often underscored that limitation should meet the requirements of principles of legality, necessity, rationality, proportionality and sanctity of life, dignity and equality.⁷³

⁷¹ . Ibid, clause (4).

. Kahn Freud (1983) labor and the law, Stevens and Sons, London, PP.209.

⁷² . See supra footnote 16.

⁷³ . Ibid.

In other words, in order to fulfill the requirements of legality, all limitations need to be imposed through the instrumentality of a law that was procedurally and substantively legitimate. Also, the law issued must be necessary in a democratic society. It was necessary when the existence of the country is likely to be shaken to the core, all the system is so destabilized as to lead to crisis in governance. Thus, limitative laws are said to be necessary if the exercise of the right is a threat to public order, public morals, public health, public peace, safety, security or to the rights and freedoms of others. Moreover, in order to fulfill the requirements of rationality, one must establish the existence of a cause- effect relationship between the exercise of the right and the impending harm, and/ or between the limitative action and the impending harm intended to be prevented by such action. The requirements of proportionality is met through conforming the impending harm intended to be prevented in the one hand and the gravity of the limitative action or decision on the other.⁷⁴ And always, limitations can be imposed to defy the sanctity of life, dignity and equality of all human beings. One can limit rights without subjecting a person to humiliating and degrading treatment or punishment, or without discriminating against them arbitrarily, or without taking their lives without due process of law.

An international and regional human rights instruments set demarcation for the right to form and join a trade union for various policy reasons. The ICCPR under its article 22 sub-(2) states....no restrictions may be placed on the exercise of this right other than those which are necessary in a democratic society in the interests of national security or public safety, public order, the protection of public health or morals or the protection of the rights and freedoms of others.⁷⁵ In similar word, ICESCR provides that.... The right to form a trade union is subject to certain restrictions that are only subject to the rules of the organizations concerned and those prescribed by the law, which are necessary in a democratic society or public order, for the protection of rights and freedoms of others.⁷⁶ Moreover, article 11 of ECHR imposes some lawful restrictions on the exercise of these rights by the armed forces, of the police or of the administration of the state.⁷⁷ The convention restricts the rights of those individuals if and only if the restriction was made by law,

⁷⁴ . Ibid.

⁷⁵ . See supra footnote 7.

⁷⁶ . See supra footnote 5 sub (-2).

⁷⁷ . See supra footnote 8 sub (-2).

should be necessary in a democratic society and be based on some reasons.⁷⁸ The other regional human rights instrument, ACHPR also imposed a limitation on the right to association, if the restriction was abided by law.

2.7 Significance of forming a trade union

Human rights can be categorized as an individual and group/collective rights based on number of individuals who claims the right. The right to form a trade union has both individual and group aspect. But more often, it resembles to a group right and has some significance to its members:

1. **Collective bargaining on pay and conditions-** The existence of a strong and recognized trade union is a prerequisite to industrial peace. Decisions taken through the process of collective bargaining and negotiations between the employer and unions are more influential. The union can bargain with employer(s) on behalf of the employee(s) in relation to the salary and the working conditions.
2. **Personal representation-** trade unions play an important role and are helpful in effective communication between the workers and the management. The central function of a trade union is to represent people at work.
3. **Trade unions strengthen worker's demand-** for better labor and industrial legislation. The ability of unions to represent workers and their families stand as an asset, by offering better deals in terms of labor legislations, better medical facilities , welfare schemes, annual leaves, insurance and other benefits are the results.
4. Unions provide legal support to workers when they face police action and legal tangles.
5. Trade unions can ensure more job security for its members than non-unionized, unorganized workers.

⁷⁸ . Those other reasons are interest of society, national security, or public safety, for the prevention of disorder or crime, for the protection of rights and freedoms of others.

. See supra footnote 9.

6. Factories with union activity are safer when it comes to chance for industrial accidents. Union pressurizes employers to ensure better safety measures at work place.

7. Trade unions can negotiate with management for mutual give and take in matters of increased productivity. When there was a higher production trade unions can negotiate better remuneration, so that, both workers and managements can be benefited.

8. Trade unions can protect workers physical and mental torture and exploitation of superiors at workplace.⁷⁹

Hence, forming a trade union has multi-importance to employees viz, tends to have higher wages than non-unionized workers, better protected and represented in legal matters. It also benefits employers through resulting higher level of efficiency and improve productivity since the individual rights of workers were betterily protected and well represented.⁸⁰

⁷⁹ . [https://www. guardian.com/public-Leaders-network/2014/Sep/09/trade-union-why-jion-public servants](https://www.guardian.com/public-Leaders-network/2014/Sep/09/trade-union-why-jion-public-servants) last accessed on March 2017.

⁸⁰ . Ibid.

CHAPTER 3

The status of trade union right under Ethiopian labor law and the constitutionality of the right to form a trade union by civil servants

3.1 History of a trade union right in Ethiopia

The history of a trade union right all over the world is the history of struggle for greater social justice, both in societies and at work place. At domestic level, the formal history of trade union in Ethiopia goes back to the year 1963 when the monarchical role of Haile Selassie adopted the labor relation decree of 210 /1963.⁸¹ Although the 1955 constitution guaranteed the right to form workers association, it was not until 1962 that the Ethiopian government issued the labor relation decree, which authorized trade union right. It was only after the labor relation decree came into force that the ‘federation of employers of Ethiopia in 1963 and the ‘confederation of Ethiopian labor unions (CELU) in 1964 came into picture. The history before that was marked by the suppression of any movement close to unionism as criminal.⁸²

⁸¹. See supra footnote 28.

⁸². See supra footnote 10.

Beside the 1963 labor relation decree, for the first time in the history of Ethiopia the then emperor, emperor Haileselassie I made the first labor relation decree in the year 1962. The title of the decree was “The labor Relation decree of 1962.”⁸³ As it was mentioned on the preamble of the decree its objectives were mentioned which are to some extent related to unionization, includes;

- Enhancing a harmonious and voluntary co-operation of labor and enterprises in order to promote a higher standard of living;
- Making possible the creation of prosperous labor conditions in all enterprises;
- Settling disputes through collective bargaining between the employers and employees or their lawful representatives;
- Establishing principles that governs relation between labor and employers; and
- To create an institutional framework within which these principles may be applied.⁸⁴

Article 2 of the decree provides that employers and employees are allowed to join associations of their own. However, sub article (C) of it mentioned that the minimum possible number of employees to form a labor union in an organization would be 50.⁸⁵ The decree did not left by only guaranteeing right of association, but it also excluded certain categories of workers from its ambit in the form of exclusion. As the decree clearly mentioned, it would not be applicable on workers holding managerial post, domestic servants, a farm having less than ten permanent employees and public servants.⁸⁶ Thus, we can infer from this that public servants/ civil servants are totally ousted from exercising an association right under the decree.

After coming to an end of Haileselassie era, Derg took a political power with a socialist ideology. Having taken political power, Derg promulgated the labor proclamation No.64/1975⁸⁷ as a labor proclamation to govern the labor relations. The proclamation was aimed to have “harmonious relations between workers and management through realizing the strict observance of socialist legality.”⁸⁸ Article 49 of the proclamation states only workers were allowed to form a trade union. In other word, employers were no allowed to form an

⁸³ . Decree No.49, Labor Relations Decree, Negarit Gazeta, 21st Year, No.18, 1962.

⁸⁴ . Ibid Preamble.

⁸⁵ . Ibid Art.2(c).

⁸⁶ . Ibid Art.2 (f) (i)-(IV).

⁸⁷ . Labor Proclamation No.64, Negarit Gazeta, 35th Year, No.11, Addis Ababa Ethiopia, 1975.

⁸⁸ . Ibid preamble.

association of their own. Furthermore, it allows only one trade union to be formed in an organization and limited the number of workers required to form a union to 20. The unions were permitted to join industrial unions and the latter were also able to establish jointly the so called All Ethiopians Trade Union (ETU).⁸⁹

Beside it guaranteed formation of a trade union rights to workers, like its preceding labor proclamation, the proclamation excluded many employees/workers from its coverage. Article 2(27) provides that the following workers shall not be considered as workers and for this reason the proclamation could not be applicable on them. They include;

- ✓ Members of Armed forces and any other bodies administered in accordance with military disciplines and regulations;
- ✓ Judges of courts of law, prosecutors and court registrars;
- ✓ Members of the Provisional National Advisory Commissions;
- ✓ Employees of state Administrations;
- ✓ Domestic servants employed by a person or family in his or its home; and
- ✓ The manager and deputy manager of an undertaking or any of its branches and all those officials accountable to such manager or deputy managers⁹⁰

The proclamation through excluding those workers made them not a beneficiary of rights mentioned under it, which includes the right to form an association/trade union of their own. On the other side, the proclamation through expressly providing categories of workers who were excluded was important to understand the scope of the right to form a trade union and its limits without doubt. Therefore, the researcher appreciates the provision of the proclamation for its express stipulation of excluded workers beside its defect on the other hemisphere.

After the coming to an end of the Derg regime, the transitional government of Ethiopia took power and promulgated labor proclamation No. 42/1993⁹¹ which stayed in effect until 2003. The proclamation included an innovative idea by permitting both workers and employers the right to form their respective associations, as its objective, which includes, inter alia, aimed;-

- ❖ To enable workers and employers to maintain industrial peace;

⁸⁹ . Ibid Art.49.

⁹⁰ . Ibid Art.2 (27).

⁹¹ . Labor Proclamation No.42/93, Negarit Gazeta, 52nd Year, No.27, Addis Ababa Ethiopia, 20th January 1993.

- ❖ To work in the spirit of harmony and co-operation towards the all-round development of the country;
- ❖ Promising the right of workers and employers to form their respective associations, to engage in collective bargaining and to lay down the procedures for the expeditious settlement of the labor disputes.⁹²

The short coming of the proclamation was that it was not applicable to all categories of workers; rather it was only applicable to workers in the public⁹³ and private enterprises.⁹⁴ On the other hand, the labor proclamation made both express and implied exclusions to prohibit many categories of workers not benefited from the proclamation. Positively, it tried to make feasible that both workers and employers have the right to form their respective associations that was denied for the latter by its predecessor.

3.2 labor proclamation No.377/2003

Ethiopia has issued proclamations⁹⁵ in the effort to improve employment outcomes through improving employment relations. Ethiopia has one consolidated labor law (labor proclamation 377/2003)⁹⁶ supported by regulations, codes of practical and collective bargaining agreements. The current existing labor proclamation was designed in a way that it can play very an important role in promoting toward the all rounded development of our country. The objectives of the proclamation as expressed under the preamble are;-

- Ensuring worker-employer relations to be governed in accordance with the basic principles of rights and obligations;
- Making possible the maintenance of industrial peace by joint effort of workers and employers and enabling them to work in the spirit of harmony and protection;
- Guaranteeing workers and employers to establish their own associations and bargain collectively through their lawful representatives;
- Creating an enabling environment for peaceful settlement of labor disputes arising between workers and employers; and

⁹² . Ibid Preamble.

⁹³ . Government institution can be categorized into public enterprises and administrative agencies/institutions. Public enterprises were established for profit and can be governed by a law that regulates private enterprises.

⁹⁴ . See supra footnote 91 Art.3 (2).

⁹⁵ . There are also ILO conventions that Ethiopia has ratified as part of its domestic laws.

⁹⁶ . See supra footnote 17.

- Making sure that the basic principles that govern labor relations should take into account the political, economic and social policies of government and to make the labor law in line with international conventions and other legal instruments to which Ethiopia was a party⁹⁷ was some among others.

The proclamation doesn't govern all kinds of labor relations. Rather there are some categories of employment relations that were excluded from the application of the proclamation. There are two types of exclusions manifested under the proclamation; express and conditional exclusions. Among those under express exclusions, there are public servants, management staff and domestic employees.⁹⁸ Public servants that were excluded includes parliamentarians, ministers, judges, members of Armed forces, member of police force, employees of state administrations and others whose employment relationship was governed by special laws. They were excluded for once and all from the application of labor proclamation. The civil/public servants were governed by a separate law, civil servants proclamation No. 515/2007.⁹⁹ The central issue of this research was the proclamation did not guarantee the civil servants right to form and join a trade union of their own. Thus, excluding civil servants from the scope of labor proclamation which allowed workers and employers to form their respective association would be against the rights and interest of civil servants.

The other kind of exclusion was conditional exclusion in which the provision of the proclamation was applicable to a certain categories of workers until a certain condition happen. They include employees of diplomatic missions and international organizations and employees of religious and charitable organizations. The labor proclamation would be applicable to those categories of employees until council of ministers prohibit by regulations or excluded by an international agreement to which Ethiopia was a signatory.¹⁰⁰

Unlike the previous regimes under which one labor law governs the whole labor related matters, under the existing system there seems tree kinds of law that regulates the labor related issues. Those laws were the labor proclamation No. 377/2003 which regulates labor issues in private sectors like institutions organized on the profit motive, civil servants proclamation No. 515/2007 which governs public/civil servants at federal level and the special laws that regulates special categories of employees like Armed forces, police forces that are determined by law to be governed by special laws. Thus, the existence of separate law, proclamation No. 515/2007 and their exclusion from the scope of labor proclamation No. 377/2003 amounts to the prohibition of civil servants from exercising one fundamental democratic right, the right to association including joining forming their own trade union.

⁹⁷ . Ibid Preamble.

⁹⁸ . Ibid Art. (3)(a-e).

⁹⁹ . See supra footnote 13.

¹⁰⁰ .See supra footnote 98.

3.3 constitutional provisions related to human and democratic right in general and trade union right in particular

This sub-section dealt with constitutional provisions of Federal Democratic Republic of Ethiopia (FDRE) that were related to trade union rights. At the very beginning of the research it was mentioned that trade union right was one of the fundamental democratic rights and freedoms. To this end, article 10 of FDRE constitution provides that human and democratic rights of citizens and peoples shall be respected.¹⁰¹ Article 13(1) provides that the three branches of government are duty bound to respect and enforce the provisions of chapter three that mentions about fundamental rights and freedoms.¹⁰² Furthermore, article 13(2) of FDRE constitution states that the rights and freedoms specified under chapter three shall be interpreted in compliance with the principles of the Universal Declaration of Human Rights, International Covenants on Human Rights and International instruments adopted by Ethiopia.¹⁰³ Moreover, one of the basic pillar and principle of modern time, principle of equality, was mentioned as a general principle under article 25 of FDRE constitution. The provision reads, all persons are equal before law and are entitled without discrimination to the equal protection of the law. It furthers, that all persons are guaranteed equal and effective protection without discrimination on grounds of color, sex, religion, etc.¹⁰⁴

The general guarantee of every person to freedom of association for any cause or purpose was stipulated under article 31 of FDRE constitution. The only limitations imposed on this right were; the association should not have the purpose of violating the appropriate law or should not be formed for illegal activity to subvert the existing constitutional order.¹⁰⁵ The constitution clearly stated that many categories of workers have the right to form trade unions and other associations to bargain collectively with employers or other organizations that have an effect on their interests.¹⁰⁶ The constitution guaranteed these rights of workers in article 42(1) which stated that factory and service workers, farmers, farm laborers, other rural workers and government employees whose work compatibility allows for it and who are below a certain level of responsibility have the right to form associations to improve their conditions of employment and economic well-being. This right includes the right to form trade unions and other associations to bargain collectively with employees or other organizations that affect their interests. Article 42(1) (c) states government employees who enjoy the rights provided under paragraphs (a) and (b) of this sub-article shall be determined by law.¹⁰⁷

¹⁰¹ . See supra footnote 15 Art.10.

¹⁰² . Ibid Art.13 (1).

¹⁰³ . Ibid sub (-2).

¹⁰⁴ . Ibid Art.25.

¹⁰⁵ . Ibid Art.31.

¹⁰⁶ . Ibid Art.42 (1) (a).

¹⁰⁷ . Ibid sub (-2).

3.4 Constitutionality of the right to form a trade union by civil servants

As it was discussed somewhere in this paper the international community has largely come agreed in favor of forming international laws due to their importance. To this end many international laws starting from Universal Declaration of Human Rights to two international covenants and many ILO conventions were made by states at international level and have the power of binding member states who participated in their formation and ratified them. Not only this, ratifying states were bound themselves to implement the conventions both in the form of legislation and in the practice. Ethiopia has ratified many international instruments and was also a member state of ILO since 1923 and has ratified the fundamental conventions¹⁰⁸ of ILO. Hence, as a member of international community and ratifier of ILO conventions Ethiopia has expected to put into effect the conventions she has ratified in the form of legislation as well as to make them practical.

As the title of the research reflected, the researcher was aimed to see the constitutional base to form a trade union by civil servants. Hence, special attention was given on the constitutionality of the right to form a trade union by civil servants under Ethiopian legal system through analyzing international instruments, ILO convention, countries experience, national laws and FDRE constitution. As it has already mentioned earlier international instruments like UDHR, ICCPR, ICESCR and regional human right instruments guaranteed the right to form and join a trade union by workers with some restrictions without any distinction based on any grounds. In this regard, prohibiting civil servants totally from exercising this right may amounts to discrimination and violation of the instruments and entailed international obligation on the member states.

Although the fundamental conventions of ILO are eight, the two conventions, the convention on freedom of association and protection of the right to organize and the convention on right to organize and collective bargaining were widely acknowledge as the most fundamental ones. This was because these two rights are essentially enabling rights for workers that facilitated the way to form and join workers organization of their own choice in order to promote common organizational interests. It was also revealed that not only workers in the private sector are guaranteed the right to unionize, but also civil servants and public service employees in general are guaranteed the right to unionize. As in the Ethiopian case, the labor proclamation excluded civil servants from its scope and the

¹⁰⁸ The fundamental conventions of ILO are: Freedom of Association and Protection of the Right to Organize Convention, 1948(N. 87), Right to Organize and Collective Bargaining Convention, 1949(No. 98). Forced Labor Convention.1930 (No.29), Abolition of Forced Labor Convention, 1957(105), Minimum Age Convention, 1973(No.138), Worst Forms of Child Labor Convention, 1999(No.182). Equal Remuneration Convention/1951(No.100), and Discrimination (Employment and Occupation) Convention, 1958 (No.111). Ethiopia has ratified, from those, C.NO.87 and 98 in 1963.

non-existence of a provision under civil servants proclamation reflects the absence of detail and clear rules that allows civil servants to exercise the right to unionize beside the existence of constitutional provision to the point.

This indicates that it was against article 3(2) of convention No. 87 which prohibits any interference which restricts the exercise of freedom of association.¹⁰⁹ This was because member states were bound to undertake all necessary and appropriate measures to ensure that workers and employers may exercise freely the right to organize.¹¹⁰ Furthermore, it was provided that the law of land shall not be such as to impair, nor shall it be so applied as to impair, the guarantees provided for in the convention.¹¹¹ So the researcher strongly argues that absence of an express provision under civil servants proclamation that allows civil servants to form their respective association was against the above convention and have no a constitutional base.

Article 9 of convention No. 87 stated that the only exception left for the determination of national laws or regulations was the extent to which the guarantees provided by the convention shall apply to Armed forces and police.¹¹² This provision reflects that even Armed forces and polices were the beneficiaries of the right mentioned under the convention, however, the extent of its enjoyment was left for the determination by the national legislations of member states. Per this article, member states were not entitled to restrict the enjoyment of rights it guaranteed through separate legislations except to Armed forces and polices. Obviously one can reach on conclusion that restricting the right of freedom of association of civil servants by a separate legislation amounts to breach of this provision, to which Ethiopia has been a party since 1963. In most countries constitution, there was no provision against the formation of freedom of association of civil servants. For instance, in the federal republic of Germany case, the freedom to set up an association is called “positive” freedom of association. And the members of association were entitled to all activities guaranteed to the association as such by the constitutional guarantee of freedom of association.¹¹³ In almost all countries, neither the state nor anybody else may prevent workers from setting up their association to safeguard and improve working and economic conditions or being a member of such association.¹¹⁴ In this regard, FDRE constitution also obliges that the government shall respect and insure the rights of civil service workers or government employees. According to the constitution, the government was obliged to guarantee the right to every

¹⁰⁹ . See supra footnote 44.

¹¹⁰ . See supra footnote 48.

¹¹¹ . See supra footnote 42.

¹¹² . See supra footnote 43

¹¹³ . www.ilo.org/public/English/dialogue/active_learn_global/Freedom_2-htm. Last accessed on 20 January 2016.

¹¹⁴ . Ibid.

worker to form or set up association to improve their conditions of employment and economic well-being.¹¹⁵ Thus, government was required to guarantee both through legislation as well as practice civil servants to form their respective associations.

The right of labor to form an association including a trade union was expressly provided under article 42(1) of the FDRE constitution. It states that factory and service workers, farmers and farm laborers, other rural workers and government employees whose work compatibility allows for it and who are below a certain level of responsibility have the right to form associations to improve their conditions of employment and economic well-being. This right includes the right to form a trade union and other associations to bargain collectively with employers or other organizations that affect their interests.¹¹⁶ Sub (c) provides government employees who enjoy the rights provided under paragraph (a) and (b) of this sub-articles shall be determined by law.¹¹⁷ This provision was the core area on which the researcher based his central objective. Of course, the provision seems to categorize those government employees who are entitled the right to form an association and those who are not entitled but not in a clear manner. Moreover, it stipulates for the determination of those categories of government employees through other legislation. Accordingly, the legislator made two separate laws that regulate labor matters in private sector and in public sector, proclamation No. 377/2003 and 515/2007 respectively. However, the labor proclamation excluded civil servants from its ambit and the civil servants proclamation enacted without having a provision that guarantees civil servants the right to form an association including a trade union. This fact has led to a view that generally there was no a constitutional base that allows civil servants to form a trade union. To the point the researcher strongly argues the non-inclusion of a provision that allows for formation of a trade union by the civil servants proclamation by mere means does not amounts to such hasty generalization. Rather it could be against those international human rights instruments and labor conventions so far I have discussed and imposes international responsibility on Ethiopia for her non-respect of her international obligation. Additionally, through articles 9(4), 13(2), 25, 31, and 42(1) (a-c) of the FDRE constitution, the researcher argues for the existence of constitutional base for the formation of a trade union by a civil servants.

Meanwhile, freedom of association was one of a democratic rights recognized by FDRE constitution. Article 31 of the constitution states that “every person has the right to freedom of associations for any cause or purpose”. On the other hand, individuals or group of persons may enjoy these rights provided that their enjoyment shall not in any way unlawfully cause harm upon similar enjoyment of

¹¹⁵ . See supra footnote 15

¹¹⁶ . Ibid Art.42 (1) (a).

¹¹⁷ . Ibid sub(c).

these right by others.¹¹⁸ It has also stated that human and democratic rights of citizens and peoples shall be respected.¹¹⁹ Therefore, restriction of the right to form an association beyond those lawful grounds was against this right when I examine it relatively with the constitution. The right was guaranteed by different international instruments and ILO conventions which Ethiopia has ratified. Article 9(4) of the FDRE constitution states, all international agreements ratified by Ethiopia are an integral part of land.¹²⁰ Furthermore, article 13(2) stipulates, the fundamental right and freedoms specified in this chapter shall be interpreted in a manner conforming to the principles of the Universal Declaration of Human Rights, International Instruments adopted by Ethiopia.¹²¹ Hence, based on those constitutional provisions, the researcher strongly argues that government should protect and guarantee through legislation the rights of civil servants the right to organize by implementing the constitution, the international human rights instruments, and the ILO conventions. And it could be one way of strengthening the argument that civil servants have the constitutional base to form a trade union.

The labor proclamation provides that all worker and employers shall have the right to form their own organizations.¹²² Trade unions are also allowed to form federations and confederations jointly and to be affiliate of international organizations.¹²³ Article 25 of FDRE constitution provides all persons are equal before the law and are entitled without any discrimination to the equal protection of the law.¹²⁴ In this respect, the law shall guarantee to all persons equal and effective protection without discrimination based on any grounds. On the other hand, civil servants right to form an association including a trade union was not guaranteed by subsequent legislations. Therefore, the researcher argues guaranteeing a right to form a trade union by private sector workers and denying this fundamental right and freedom for civil servants amounts to differential treatment and discriminatory in nature that contravenes the stipulation of article 25 of FDRE constitution. Totally, the researcher strongly argues for the constitutionality of the right to form a trade union by civil servants after a thorough analysis of various international and regional human rights instruments and ILO conventions, countries experiences and domestic laws including FDRE constitution.

3.5 Grounds of limiting human and democratic rights particularly to trade union rights in Ethiopia.

¹¹⁸ . See supra footnote 102.

¹¹⁹ See supra footnote 101.

¹²⁰ . See supra footnote 15 Art.9 (4).

¹²¹ . See supra footnote 102 sub (-2).

¹²² . See supra footnote 17 Art.113 (1).

¹²³ . Ibid sub (-3) and (-6).

¹²⁴ . See supra footnote 104.

In spite of the claim to universality and inalienability, human rights are not exercised in an absolute manner. There was a limitation imposed on the exercise of right for the sake of making an optimal “utilization” or enjoyment of rights.¹²⁵ Limitations are lawful infringements of rights. They are acceptable or justifiable violations. Limitations can be used as a mechanism through which we mediate between competing rights of different type or intended to be exercised by different beneficiaries. The right to form an association as one type of fundamental democratic right and freedom was not a free right, i.e. its enjoyment can be limited like other human rights. However, imposing limitation on exercise, guarantee and enjoyment by itself has limitation. Limitations imposed on the exercise of rights are not without limits.¹²⁶ In other word, limits on enjoyment of rights cannot be imposed arbitrarily. To this end, limitations should have to meet a certain requirements to make it lawful. Therefore, limitations should be legal, necessary and proportional to the harm intended to be prevented. Limitations can be general or specific.¹²⁷

In Ethiopia, there was no a separate provision in the constitution dealing with limitations that can be imposed on the exercise of human and democratic rights and the manner in which these limits can be imposed.¹²⁸ This does not mean that human and democratic rights in Ethiopia were not subject to limitation. Nevertheless, there are specific limitations recognized by single articles. Even these specific limitation clauses sometimes describe that limitations can be determined by law. Some rights such as the right to freedom of association (art.31), right to freedom of religion (art.27), expression (art.29) or assembly (art.30) were subject to specific limitations. The general provision that allows for the freedom of association Article 31 guaranteed citizens of similar interest would join together in an association. The right to create an association for whatever purpose was a right sanctioned by the constitution. Political parties and pressure groups, as well as professional associations, economic, social, and cultural associations of one form or another may be established on the basis of the freedom of associations.¹²⁹ That the law can impose parameters for the public good and that prior registration with competent authorities would be required there was no question. Beyond that, the constitution outright prohibits associations which were established for or undertake acts that subvert the rule of law or destroy the constitutional order.¹³⁰ Such associations may be illegal ab initio, or an association may be so found and terminated later on because of unconstitutionality acts it has undertaken.

¹²⁵ . See supra footnote 18 PP.313.

¹²⁶ . Ibid PP.314.

¹²⁷ . Based on their scope of applicability, limitations can be either specific or general. Specific limitations are limited in scope and applicable to a specific provisions only, whereas, general limitations have a wider applicability and applicable throughout a document or to the whole provision to it.

¹²⁸ . See supra footnote 18 PP.315.

¹²⁹ . Fasil Nahum (1997), constitution for nation of nations the Ethiopian prospect, The Read Sea Press, Inc. Asmara, Eritrea, PP.25.

¹³⁰ . See supra footnote 105.

3.6 Researchers reflection on the limitation

After having made a thorough and depth read of international and regional human rights instruments, ILO conventions, countries way implementing a trade union rights and domestic laws, the researcher observed limitations can be imposed on the enjoyment of a trade union rights. But, the limitations can be imposed if and only if it was prescribed by law, necessary in a democratic society for national security or public interests or morality and for the protection of rights and freedoms of others. In addition to this, some conventions obliged the associations to be formed to be in line with the rules of the organization concerned. From this perspective, the rights of civil servants to form a trade union can be limited only if the limitation was imposed by law and meets the other requirements.

In relation to subject/personal limitation almost all above dealt instruments guaranteed the right to “everyone” without any indication of limitation to form an association including a trade union. Purposely, one can understand through following this line, no one was denied to form a trade union. However, if one looks some instruments certain civil servants like armed force, police force and state administrations were denied to form a trade union. Even this exclusion was left to member states to be determined by their domestic laws and legislations. In Ethiopian case, as determined by the constitution, freedom of association would be limited if the organization was formed in violation of appropriate laws in force or illegally subvert the constitutional order or was formed to promote such activities that were prohibited. The researcher strongly argues that imposing limitations out of those stipulated in the constitution would amounts to unconstitutionality and not allowing civil servants for the formation of trade union by subsequent laws has no a constitutional base.

The express guarantee to government employees to form an association including a trade union was guaranteed by the constitution. The researcher understood from the provision of the constitution that not all civil servants were guaranteed this right, rather the provision reads in part....”government employees whose work compatibility allows for it and who are below a certain level of responsibility have the right to form association.” From this one can infer two indicators that seems to imposing a limitation on some government employees; work compatibility and level of responsibility. But also, sub(c) strengths this argument. Accordingly, the law to be made should have clearly provided civil servants that are entitled this right and those which were excluded. However, greater emphasis should be given to make it in line with international human rights instruments and ILO conventions to which Ethiopia was a party. Hence, the researcher argues that like other human rights it is possible to impose limitation, but it could be based on law alone and to achieve some policy objectives. Regarding beneficiaries of the right, the law should clearly determine categories of workers who were entitled and who are not entitled in compliance with a countries international obligation.

CHAPTER 4

Conclusions and Recommendations

4.1 Conclusions

Based on the major findings, the following conclusions have forwarded:

1. The right to form a trade union was both a private and collective right that has given protection by international and regional human rights instruments and domestic laws.
2. The right was guaranteed to everyone without any distinction on any grounds only subject to a certain limitations prescribed by the law. But it has revealed that armed forces, police forces, policy making managerial, prison service, intelligence Agencies state administrates were restricted from forming a trade union.
3. Forming a trade union has a multi- purpose to the employee(s) and employer(s). The existence of strong and recognized trade union is a perquisite to industrial peace. Decisions taken through the process of collective bargaining and negotiations between employer and unions are more influential.
4. Limitations can be imposed on the enjoyment of the right to form a trade union. However, imposing a limitation exercise, guarantee, and enjoyment by itself has a limitation. It has revealed that, limitations should be lawful, necessary and proportional to the harm intended to be performed.
5. In Ethiopia, the constitution expressly guaranteed to many categories of workers including government employees the right to form associations including trade unions to bargain collectively with employers or other organizations that have an effect on their interests.

Based on the above mentioned facts, the researcher concludes that there was a constitutional base to form a trade union by civil servants and they can form and join like workers in private sector. The limits to the right should be determined by law like in other cases. Thus, the civil servants (which neither prohibits nor guarantees a trade union right) proclamations contravenes the two ILO conventions FDRE constitution. Hence, the researcher concludes that the two proclamations under the discussion has such limitations that either needs their revision/ and or an inclusion of a new provision that in a clear manner provides for civil servants who were allowed to form a trade union and who are not entitled that could possibly change the perception in relation to a trade union rights of civil servants.

4.2 Recommendations

1. Ethiopia has been a member of ILO since 1923 and had ratified many ILO conventions. As a member state of ILO, Ethiopia has required to implement ILO conventions and recommendations made by ILO. States that have ratified ILO conventions were duty bound to respect, protect, and promote every person's freedom of association. In addition to ILO conventions, Ethiopia has ratified international human rights instruments like UDHR, ICCPR, and ICESCR which guarantees a trade union right which Ethiopia was also obliged to implement. At this juncture, mention should have made to Art. 9(4) of FDRE constitution that reads "any international agreement ratified by Ethiopia as an integral part of the law of the land". So the researcher recommends in here, Ethiopia should implement every right that was provided by international human rights instruments and ILO conventions as her own law. Because lack of detail rules that allows civil servants to an association including a trade union was in contravention of the instruments and conventions to which Ethiopia has been a party.

2. The FDRE constitution guarantees that every person has the right to freedom of association for any purpose, Art.31. In other word, freedom of association is not a gift that is at mercy of either organs of the government. Rather they are duty bound to respect and enforce the provisions of fundamental rights and freedoms of humans per Art. 12 of the constitution. Moreover, the right of all categories of employees and government employees to form association is also expressly stated in the constitution. However, formation of association that includes a trade union for civil servants is no yet settled. The constitution further provided that government employees who enjoy the rights mentioned in it shall be determined by the law. Even though such stipulation was stated under the constitution, the anticipated law towards enabling civil servants/government employees to form association is not yet to come since it has been more than two decades after the

adoption of the constitution. Therefore, the researcher recommends that such law that clearly provides and determines such right must be made.

3. Now there were two different legislations that regulate labor related issues in two different sectors. The labor proc. No. 377/2003 which regulates labor issue in private sector and proc. No. 515/2007 which regulates such issues in public sector. Nevertheless, the two legislations have their own defect; the former excluded the civil servants which indirectly denied the right to form an association to them and the latter is silent regarding freedom of association of government employees. In this regard, the researcher recommends that the two proclamations have such limitation that either needs their revision/and or an inclusion of a new provision that in a clear manner provides for civil servants who are allowed to form a trade union and who are not entitled including the limits of the right.

4. The researcher also recommends for the ratification of the Labor Relations (public service) convention, 1978 (No. 151) which was adopted in considering the fact that convention No. 98 does not cover certain categories of public servants. The convention was designed in line to be applicable to all persons employed by public authorities. As a whole, the convention provides that public employees shall have similar civil and political rights as other workers which are essential for the normal exercise of freedom of association, subject only to the obligations arising from their status and the nature of their function. Therefore, due to its significant to public employees the researcher recommends for its ratification by Ethiopia.

In a nutshell, the researcher strongly recommends that a law must be made by the legislator to whom the constitution given power to make a law that entitles the government employees who were entitled the association rights per as the constitution. The law to be made should answer to the questions, which civil servants are allowed to form a trade union and which are not allowed to enjoy the right. It also should provide in a clear manner the limits of the right to form a trade union by those who are entitled the right.

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